

The State etc.

Mr. Naveed Ahmad Khawaja, Advocate for the petitioner.
Rana Muhammad Imran Anjum, Deputy Prosecutor General with Iqbal SI, Shams SI & Imran ASI.

3. Learned counsel for the petitioner contends that petitioner being owner in possession of adjacent lands had once resisted the interference into his property rights by the Rangers who retaliated to book the petitioner in this false case, and story was concocted that two co-accused succeeded to run away from the crime scene which is not believable, keeping in view the strength and arms available

to the Rangers. Further states that Pakistan Rangers have no authority to arrest and detain the offenders under the Control of Narcotic Substances Act, 1997 (CNSA 1997); however, on the direction of this Court when read the relevant Notification of Federal Government responded that then officer must not be below the rank of an Inspector, whereas in this case, the raiding party was constituted under the supervision of Sub Inspector.

4. Officers from Pakistan Rangers were carrying a Notification bearing No. S.R.Q. 1090(1)/2010 dated 1st December 2010 issued by Government of Pakistan (Revenue Department) Federal Board of Revenue which entrusted the officers of Pakistan Rangers, Frontier Corps (Baluchistan, Khyber Pakhtunkhwa including FATA) operating within their respective jurisdiction, the functions of officers of Customs under the provisions of the Customs Act 1969. Such functions shall be limited within 20 kilometers of the international borders. Thus, they claim to inspect any suspected person come within the radius of 20 kilometers. Perusal of such Notification shows that it was ordered to remain in force till the 31st June, 2011 and thereafter it shall be re-issued or extended subject to satisfactory performance of aforesaid departments. Officers of Rangers however, claimed that it is still operative.

5. Arguments heard; record perused.

6. To better appreciate the contention of learned counsel for the petitioner, it is essential to reproduce the Statutory Regulatory Order (S.R.O) issued by the Federal Government vesting powers on officers of Pakistan Rangers to act under section 21 of the CNSA 1997, here it is;

CONTROL OF NARCOTIC SUBSTANCES ACT 1997

(Authority to exercise powers and perform functions under Ss.

22, 23, 37(2) and 38)

[Gazette of Pakistan, Extraordinary, Part II, 3rd August, 2004]

S.R.O. 656(1)/2004, dated 2.8.2004.- In exercise of the powers conferred by subsection (1) of section 21 of the Control of Narcotic Substances Act, 1997 (XXV of 1997), and in supersession of its Notification No.S.R.O. 1134/97, dated 7th July, 1997, the Federal Government is pleased to authorize the members not below the rank of Sub-Inspector or equivalent of the Anti-Narcotics Force, Provincial Excise and Police Departments. Inspector or equivalent of the Customs Department and Subedar or equivalent of Pakistan Rangers (Sindh), Inspector or equivalent of Pakistan Rangers (Punjab), Naib Subedar or equivalent of Pakistan Coast Guards and to the Officers of Maritime Security Agency not below the rank of Chief Petty Officer to exercise the powers and perform the functions under the aforesaid section and sections 22, 23, 37(2) and 38 of the said Act within the areas of their respective jurisdiction. [PLD 2006 Cent. St. 10]

Reading and perusal of above Notification reflects that in Punjab, the Inspector or equivalent of Pakistan Rangers can exercise powers under section 21, 22, 23, 37 (2) and 38 of the CNSA 1997 within their respective jurisdiction. Thus, are authorized to search, seize and arrest any person committing any offence under CNSA 1997.

7. Claim of learned Counsel for the petitioner, that arrest by Sub Inspector Pakistan Rangers has vitiated the whole proceedings, cannot be honoured due to two substantive reasons. Firstly, with all just legal exceptions, officers of different categories of Pakistan Rangers are also authorized to exercise powers under respective provisions of Customs Act, 1969 in the light of Notification of year 2010. Secondly, Officers of Pakistan Rangers after arrest, search and seizure of narcotics have handed over the accused/petitioner to the local police, which power is available even to every private individual under section 59 of the Cr.P.C. Thus, no illegality has been observed, particularly when the case has been investigated by the police.

8. Huge quantity of heroin has been recovered from the possession of petitioner with his active knowledge which cannot be termed as innocent mistake. Nothing is available on record which could *prima facie* show that Pakistan

Rangers have any ill-will or ulterior motive to falsely implicate the petitioner in this case. Apparently, sufficient material is available on record to connect the petitioner with the commission of alleged crime. Therefore, by relying upon the cases reported as “Mst. FURSAN Versus The STATE” (2022 SCMR 1950) & “NOOR KHAN Versus The STATE” (2021 SCMR 1212), this petition is **dismissed**.

(MUHAMMAD AMJAD RAFIQ)
JUDGE

Approved for Reporting:

Judge

Signed on 25.02.2025

*M. Azhar**